

Plaintiff's unopposed motion to enforce the settlement agreement pursuant to Code of Civil Procedure section 664.6 is GRANTED. The proposed order lodged with the motion is consistent with the terms of the parties' settlement agreement and shall be adopted.

In the event the parties are unable to agree to a broker and submit names to the court as contemplated by the proposed order, the parties shall contact the Judicial Assistant for Department 8 to notify the Department of the submission. (The court does not read every submission at the time of filing and is only notified of an item requiring action when it is placed on calendar.) In the event appointment of an elisor is necessary, the court appoints Brian Taylor, Clerk of the Superior Court, or his delegate.

Costs and fees shall be sought by motion and memorandum.

JP MORGAN CHASE BANK v. MARIA F BAGARINO
Case No. CU25-06517

Motion to Vacate Dismissal Under CCP § 664.6 and Enter Judgment Pursuant to Stipulation

TENTATIVE RULING:

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Defendant never appeared in this action until an "appearance" via a stipulation which does not include Defendant's name or contact information in the caption, was filed by Plaintiff and for which Plaintiff paid the first appearance fee. The stipulation contains no information regarding Defendant's contact information including telephone, email or address.

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc, § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].) Defendant never filed a responsive pleading in this action identifying an address of record. The court does note that the proof of service is mailed to the same location that personal service of the summons and complaint was originally made which gives rise to an inference of effective service, but absent a meaningful appearance in this action, personal service of the motion is required.

The motion for entry of judgment is DENIED WITHOUT PREJUDICE.
